

26STCV15328 26STCV15328

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV15328

UNDERDOG

AMERICA LLC vs HARBOR PROPERTY MANAGEMENT, INC., et al.

September

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S DEMURRER TO DEFENDANTS' ANSWER TO PLAINTIFF'S COMPLAINT.

RULING:

The Court sustains the
Demurrer, with 20 days' leave to amend.

Plaintiff to give notice.

I.

BACKGROUND

On May 13, 2026, UNDERDOG
AMERICA LLC, (Plaintiff) filed a Complaint against HARBOR PROPERTY MANAGEMENT, INC. and SCOTT
COLETTE (Defendants), listing Causes of Action for:

1.

FRAUD IN THE INDUCEMENT

2.

FRAUDULENT MISREPRESENTATION

3.

NEGLIGENT MISREPRESENTATION

4.

BREACH OF CONTRACT

5.

BREACH OF FIDUCIARY DUTY

6.

NEGLIGENCE

7.

INTERFERENCE WITH PROSPECTIVE ECONOMIC ADVANTAGE

8.

VIOLATION OF BUSINESS & PROFESSIONS CODE § 17200, ET SEQ.

9.

VIOLATION OF PENAL CODE § 496(C)

10.

DECLARATORY RELIEF

11.

CONVERSION.

Plaintiff alleges that Defendants negligently managed Plaintiff's apartment complex property at 1115 East 75th Street, Los Angeles, including by (1) not timely maintaining and leasing vacant units, (2) not properly handling tenant matters and financial obligations, (3) not properly communicating with the Los Angeles County Development Authority, and (4) not assisting in an orderly transition to new management.

On August 10, 2026, Plaintiff filed the Demurrer to Defendants' Answer, essentially on grounds that it does not state facts sufficient to constitute an Affirmative Defense, with certainty.

Defendants have filed an Opposition, asserting some uncommon defense positions regarding answer sufficiency. Alternatively, Defendants request leave to amend.

II.

LEGAL STANDARD

A general demurrer may be made on the ground that an answer does not state facts sufficient to constitute a defense. (*Timberidge Enterprises, Inc. v. City of Santa Rosa* (1978) 86 Cal.App.3d 873, 880.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action." (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732.)

Affirmative defenses are based upon facts demonstrating that no cause of action exists, notwithstanding the truth of the complaint's allegations. (*Walsh v. W. Valley Mission Cmty. College Dist.* (1998) 66 Cal.App.4th 1532, 1542, fn.3.) Facts tending to disprove complainants' allegations constitute a traverse that may be stated as general denials, but facts tending to support a defense independently of them constitute new matter that must be specially pleaded as affirmative

defenses. (Walsh v. W. Valley Mission

Cnty. College Dist. (1998) 66 Cal.App.4th 1532, 1546; State Farm Mut. Auto. Ins. Co. v. Superior Court (1991) 228 Cal.App.3d 721, 725.)

III.

ANALYSIS

Plaintiff contends that

the First-through-Nineteenth Affirmative Defenses in Defendants' Answer to the Complaint, fail to state facts sufficient to constitute valid defenses with certainty. The Reply adds that Plaintiff does not presumptively know, and uncertainty exists as to what Cause of Action each Affirmative Defense relates to (citing, Code Civ. Proc., § 431.30, subd. (g)).

Defendants have filed an

Opposition, principally contending that the general denial portions of the Answer are not Affirmative Defenses, the Complaint supplies facts, Plaintiff presumptively knows details with certainty, and the Demurrer fails to specifically address each Affirmative Defense.

An answer must aver facts

as carefully as is required for complaints. (FPI Dev., Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 384.) "Affirmative defenses must not be pled as 'terse legal conclusions,'..." but rather as facts averred in as much detail as is required in complaints. (In re Quantification Settlement Agreement Cases (2011) 201 Cal.App.4th 758, 813.) Affirmative defenses consisting of legal conclusions cannot overcome a demurrer or motion for judgment on the pleadings. (Westly v. Board of Administration (2003) 105 Cal.App.4th 1095, 1117 [insufficient answer allegations that: "Plaintiff's claims are barred in whole or in part by the doctrine of waiver," and "Plaintiff's causes of action, or some of them, are barred by the doctrine of laches because plaintiff unreasonably delayed bringing suit, causing defendants to reasonably rely on the status quo."].)

A reading of Defendants'

Answer readily reveals that it unsatisfactorily contains conclusions as to elements of various affirmative defenses, without alleging any ultimate facts as to any of the elements.

IV.

CONCLUSION

Courts generally allow at least one time to amend a pleading, after sustaining a demurrer, even without any request for leave to amend. (McDonald v. Superior Court (1986) 180 Cal.App.3d 297, 303.)

Therefore, the Court sustains the Demurrer, with 20 days' leave to amend.